

SENATE No. 1570

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to expanding access to healthy food choices in vending machines on state property.

PETITION OF:

NAME:

Jason M. Lewis

DISTRICT/ADDRESS:

Fifth Middlesex

SENATE No. 1570

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 1570) of Jason M. Lewis for legislation to expand access to healthy food choices in vending machines on state property. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1399 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to expanding access to healthy food choices in vending machines on state property.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 133A of chapter 6 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking out, in lines 18 to 19, the words “no later than
3 December thirty-first, nineteen hundred and eighty-three” and inserting in place thereof the
4 following words:- annually, on or before December 31.

5 SECTION 2. Chapter 111 of the General Laws, as so appearing, is hereby amended by
6 adding the following section:-

7 Section 245. (a) As used in this section, the following words shall, unless the context
8 clearly indicates otherwise, have the following meanings:

9 “Commissioner”, the commissioner of public health

10 “Department”, the department of public health

11 “Government property”, all property owned or managed by the commonwealth including
12 government office buildings, road-side rest stops, state parks and recreation centers, state
13 colleges and universities and state-supported hospitals.

14 “Non RSA-vendor”, any person who by contract, agreement or ownership is responsible
15 for furnishing, installing, servicing, operating or maintaining a vending machine or vending
16 facility who is not licensed by the commission for the blind to operate such machine or facility.

17 "Nutritional standards", the standards promulgated by the department in accordance with
18 subsection (b).

19 “Vending machine”, any self-service device offered for public use which, upon insertion
20 of a coin, coins, token, paper currency, or by any other means, dispenses servings of food or
21 beverage, either in bulk or in package.

22 “Vendor”, a blind person licensed by the commission for the blind to operate a vending
23 facility under the terms of the Randolph-Shepard Act, 20 U.S.C. chapter 6A, section 107; 29
24 U.S.C. sections 701 et. seq.; and sections 129, 130, 131J and 133 through 133E, inclusive, of
25 chapter 6 of the General Laws.

26 (b) All foods or beverages sold through vending machines located in government
27 buildings or on property owned or managed by the commonwealth shall be limited to food and
28 beverage items that comply with the nutritional standards established by the commissioner of
29 public health. The commissioner shall promulgate regulations establishing evidence-based

nutrition and food procurement standards that meet or exceed those set forth in "Food Service Guidelines for Federal Facilities." issued by the federal general services administration. These standards shall apply to any new contracts with the state.

(c) A non-RSA vendor may meet the requirements in subsection (b) by: (i) offering 20 per cent of the food or beverages in a vending machine that meet nutritional standards by one year after implementation; (ii) offering 40 per cent of the food or beverages required to meet nutritional standards by two years after implementation; (iii) offering 60 per cent of the food or beverages required to meet nutritional standards by three years after implementation; and (iv) offering 75% per cent of the food or beverages or higher required to meet nutritional standards by four years after implementation and thereafter.

A vendor licensed by the state licensing agency pursuant to sections 133A to 133F, inclusive, of chapter 6 may meet the requirements in subsection (b) by: (i) offering 10 per cent of the food or beverages in a vending machine that meet nutritional standards by one year after implementation; (ii) offering 30 per cent of the food or beverages required to meet nutritional standards by two years after implementation; (iii) offering 50 per cent of the food or beverages required to meet nutritional standards by three years after implementation; (iv) offering 60 per cent of the food or beverages required to meet nutritional standards by four years after implementation; and (v) 75% per cent of the food or beverages or higher required to meet nutritional standards by five years after implementation and thereafter.

(d) Five years after enactment of this act and every 5 years thereafter, the department shall review, and if necessary, revise and update the nutritional standards set forth subsections

(b) and (c) to reflect advancements in nutrition science, dietary data, and new product availability.

The commissioner shall periodically review such nutritional and procurement standards and amend the regulations to reflect advancements in nutrition science, dietary data, and new product availability. The commissioner shall also establish by regulation rules regarding requirements for display of nutritional information on or near vending machines located in government buildings or on property owned or managed by the commonwealth about products sold in such vending machines. The commissioner shall also establish regulation regarding that food and beverage items that meet the nutrition standards should be placed so as to be prominently and easily visible, and in the prime selling positions. The commissioner shall also establish by regulation a schedule for compliance by vendors and non-RSA vendors with the nutritional standards established by the commissioner.

To assist in the implementation of the nutritional standards set forth in this section, the commissioner shall designate an appropriate position within the department to disseminate information and train staff on the nutritional standards to ensure compliance. The designated position shall monitor compliance and report to the commissioner every year on the status of implementation. The annual report shall include: an assessment of compliance with the nutritional standards; a description of any issues encountered in implementation of the nutritional standards; and recommendations for improvement of the nutritional standards and compliance.

The commissioner shall take the following actions:

(1) notify current vendors and non-RSA vendors of the nutritional standards and the required schedule for compliance.

73 (2) require future procurement or vending contracts to include a provision stipulating that
74 all food and beverage items will meet the nutritional standards; and

75 (3) determine whether products sold through vending machines located in government
76 buildings or on property owned or managed by the commonwealth meet the nutritional standards
77 established by the commissioner.

78 (e) Any vendor or non-RSA vendor who is found to be in noncompliance shall be subject
79 to termination of contract within any state facility or on state property; provided, however, that
80 any such vendor or non-RSA vendor shall have 60 days to cure any such non-compliance before
81 termination.

82 (f) Nothing in this section shall be construed to require a state agency, institute, property,
83 administrator, or manager to place vending machines on government property.